

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Igor Volynets	Team: Team # 6	CCRB Case #: 200707194	☒ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Thursday, 05/17/2007 5:15 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 11/17/2008	Precinct: 67
Date/Time CV Reported Thu, 05/17/2007 5:33 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 05/22/2007 2:52 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			
2. POM Pablo Dejesus	00337	915572	067 DET
3. POM Erik Worobey	10614	932229	067 PCT
4. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Yoelis Olivo	06031	927295	067 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Erik Worobey	Force: PO Erik Worobey used physical force against § 87(2)(b)	A . Exonerated
B . Officers	Force: Officers used physical force against § 87(2)(b)	B . Exonerated
C . An officer	Force: An officer used physical force against § 87(2)(b)	C . Exonerated
D . An officer	Discourtesy: An officer spoke rudely to § 87(2)(b)	D . Unfounded
E . POM Erik Worobey	Force: PO Erik Worobey struck § 87(2)(b) with a car door.	E . Exonerated
F . POM Pablo Dejesus	Force: PO Pablo Dejesus used physical force against § 87(2)(b)	F . Alleged Victim Uncooperative
G . An officer	Force: An officer used physical force against § 87(2)(b) inside the 67th Precinct stationhouse.	G . Alleged Victim Uncooperative

Synopsis

On May 17, 2007 at about 4:30 PM, § 87(2)(b) and his ex-girlfriend § 87(2)(b) had a physical argument. § 87(2)(b) walked over to the 67th Precinct and informed PO Erik Worobey that § 87(2)(b) had just beaten and bit her. PO Worobey ran after § 87(2)(b) after he ran away and followed him to the front steps of § 87(2)(b)'s residence at § 87(2)(b) in Brooklyn. PO Worobey and several other patrol officers allegedly hit § 87(2)(b) in various parts of his body as he was lying down (Allegations A and B). One of the patrol officers allegedly pushed § 87(2)(b), § 87(2)(b)'s mother aside when she came out of the house and told her to "get the fuck back inside" (Allegations C and D). PO Worobey dragged § 87(2)(b) over to a patrol car and slammed the door of the car on his foot (Allegation E). PO Pablo Dejesus tried to clear the area and pushed § 87(2)(b) who was recording the incident with his video camera (Allegation F). As he was brought to the 67th Precinct holding cell, an unidentified African-American officer pushed § 87(2)(b) against a wall (Allegation G).

§ 87(2)(g)

Summary of Complaint

§ 87(2)(b) CCRB Statement (Encl. 10a-d)

§ 87(2)(b) § 87(2)(b) African American female, contacted the Internal Affairs Bureau on May 17, 2007. She was interviewed by Sgt. Marlon Ming at Group 32 on May 17th. Her complaint was referred to the CCRB on May 18, 2007. § 87(2)(b) was interviewed at the CCRB on June 25, 2007. § 87(2)(g)

§ 87(2)(b) and her son § 87(2)(b) reside at § 87(2)(b) in Brooklyn, right across the street from the 67th precinct. On May 17, 2007 at about 4:45 PM, § 87(2)(b) saw her son, § 87(2)(b) and a female, later identified as § 87(2)(b) talking outside their house. § 87(2)(b) and § 87(2)(b) were not talking loudly. § 87(2)(b) saw § 87(2)(b) and § 87(2)(b) go around the corner on § 87(2)(b). § 87(2)(b) did not see what took place at that point. § 87(2)(b) went upstairs inside her house. When § 87(2)(b) came back downstairs five minutes later, she heard someone screaming for help. § 87(2)(b) opened the front door and saw a group of eight or nine uniformed male police officers beating someone who was near the steps of the house. Two officers were near the gate of the house while the rest were on the steps. § 87(2)(b) went outside and asked the officers, "what's the matter? You can't do that. That's not proper procedure." At this point, § 87(2)(b) was speaking in a loud tone but was not cursing.

§ 87(2)(b) got a closer look and realized that the officers were beating § 87(2)(b). § 87(2)(b) was lying on the ground handcuffed and was crying for help and yelling "mommy, grandma!" § 87(2)(b) was not cursing or resisting the officers in any way. § 87(2)(b) saw PO5 (Caucasian male, 5'7", 160 lbs or less, black hair, identified as PO Erik Worobey) punch § 87(2)(b) in the face. PO1 put the heel of his right boot

in § 87(2)(b)'s face, leaving a footmark. PO1 (Caucasian male, tall, 6' or taller, thick build, brown long-cut hair, in his 30s or 40s, in uniform) and several other officers continued to hit § 87(2)(b) on the right side of his ribs with their knees. At least three or four other officers were also punching and kicking § 87(2)(b) in various parts of his body.

§ 87(2)(b) ran out of the house and yelled out "what are you doing?" PO2 (Caucasian male, 5'3", black spiky hair, thin build, 160 lbs, 25-26 years old) grabbed § 87(2)(b) ripping part of her tee-shirt and exposing her bra—and pushed her back inside the house. PO2 told her to "get the fuck back inside" and close the door. § 87(2)(b) saw PO2 kicking § 87(2)(b) but she did not see exactly where. § 87(2)(b) went inside but then went right out, screamed out that she knew her rights, and demanded to know what was going on. § 87(2)(b) admitted that she got mad and upset and started cursing at the officers in Jamaican slang. She told the officers that they were abusing her son and that she has been living in this house for the past twenty years. None of the officers responded to § 87(2)(b) and she started yelling out for help. She saw PO4 (Caucasian male with white hair, in uniform, in his 50s, 5'6", medium to stout build) standing next to the gate. PO4 and PO6 (Caucasian male, who may have worn a white shirt, 6'1", medium build) stood at the gate and did not have any interaction with either § 87(2)(b) or § 87(2)(b). § 87(2)(b) saw PO6 shaking his head and speaking on the radio. She did not hear what PO6 said.

The officers pulled § 87(2)(b) off the ground, grabbing him and getting his pants ripped in the process, thereby exposing his genitals in public. The officers escorted § 87(2)(b) to a marked police car and one of the officers threw § 87(2)(b) inside the car and slammed the car door against both of his feet. According to § 87(2)(b) the officers drove the car around the block and did not take § 87(2)(b) straight to the 67th Precinct.

About twenty-five children from a nearby park area witnessed the incident. § 87(2)(b)'s neighbor came outside and began filming the incident with his video camera. The neighbor, nicknamed "§ 87(2)(b)"—later identified as § 87(2)(b) stood about six feet away from the officers and § 87(2)(b). According to § 87(2)(b) when the officers saw the neighbor filming, they stopped kicking § 87(2)(b). PO3 (Caucasian or Hispanic male, 5'4"-5'5", stout build, 200 lbs, 42-45 years old, long black hair, wearing blue shirt and black pants, identified as PO Pablo Dejesus) smacked the camera and told him get out and to turn the camera off. § 87(2)(b) said that this was a free country and that § 87(2)(b) had a right to be here.

§ 87(2)(b) went to the 67th Precinct stationhouse and spoke to Detective Hutchinson, an old acquaintance of hers. Det. Hutchinson told her that he did not know what was going on with her son. Later in the day, several detectives called § 87(2)(b) from the 67th precinct and asked her to bring some shoes for § 87(2)(b) because they "didn't want him to catch a cold."

§ 87(2)(b) still does not know why her son was handcuffed and arrested on May 17, 2007. § 87(2)(b)

It should be noted that during her interview with IAB, § 87(2)(b) did not mention that any officers at the scene spoke rudely or discourteously with her.

Results of Investigation

§ 87(2)(b) CCRB Statement (Encl. 11a-f)

§ 87(2)(b) a § 87(2)(b) African-American male, § 87(2)(b), § 87(2)(b), with black hair and brown eyes, was interviewed by Sgt. Marlon Ming at Group 32 on May 17, 2007. He was at the CCRB on June 25, 2007. § 87(2)(g)

On May 17, 2007, at about 5 PM, § 87(2)(b) was standing outside his residence at § 87(2)(b). § 87(2)(b) stated that he was engaged in a verbal argument with his girlfriend, § 87(2)(b). § 87(2)(b) told § 87(2)(b) she was pregnant and was arguing with him about his ex-girlfriend. § 87(2)(b) was holding § 87(2)(b) and she tried to slap him in the face. § 87(2)(b) testified that he and § 87(2)(b)

§ 87(2)(b) argue frequently and that she often steals equipment from his house.) The argument lasted approximately five minutes. § 87(2)(b) went around the corner of the house and said that she would go to the police and tell them that § 87(2)(b) “put his hands on her.” According to § 87(2)(b), § 87(2)(b) fabricated this and has since left to Miami, Florida. § 87(2)(b) went over to the backyard of his house, which is right next to the 67th Precinct. He intended to go to the precinct and speak with Officer Nash, § 87(2)(b) to explain the situation with his girlfriend to him.

Around the corner of his house, § 87(2)(b) saw § 87(2)(b) speak to several officers in a marked squad car. He did not hear what she said and he did not see what these officers looked like because they were sitting inside the car at this time. § 87(2)(b) decided to turn around and walk back to the front door of his house. Several officers knocked on the door and § 87(2)(b)'s cousin (whose name he declined to mention) opened the door. § 87(2)(b) who was standing by the steps of the house, saw about ten to fifteen police officers altogether. PO1 (Caucasian male, 5'10"-6', thin, brown spiky hair, in uniform, identified as PO Erik Worobey) came up behind § 87(2)(b) and started punching him in the face and the back of his head as § 87(2)(b) turned around. PO1 yelled at § 87(2)(b) to get down and § 87(2)(b) quickly complied. A group of other officers came up to § 87(2)(b) and started kicking him repeatedly when he was on the ground. Another officer put his police boot on § 87(2)(b)'s face, leaving a footprint. This officer blocked § 87(2)(b) from seeing what any of the other officers looked like. § 87(2)(b) screamed out, “why are you kicking me?” to no one in particular. He also yelled out “help, help!” He did not curse or use profanity with the officers at any point. Officers continued to kick and hit § 87(2)(b) in his ribs, sides, and shoulders. § 87(2)(b) believed that officers should “protect and serve” the public, but instead he thought these officers were “basically trying to kill me.” This exchange with the officers lasted about ten to fifteen minutes.

At least twenty children from a nearby school and park area saw the officers beat up § 87(2)(b). § 87(2)(b)'s neighbor also witnessed the incident and taped part of the incident with his video camera. § 87(2)(b) stated that the neighbor started taping as the officers dragged § 87(2)(b) from the steps of the house to the patrol car.

Several officers dragged § 87(2)(b) from the ground to a police car, ripping his jeans and exposing his private parts in public. § 87(2)(b) also said that his shoes, which he was wearing earlier, were missing and probably fell off in the ensuing melee with the officers when he got inside the car. PO1 forced § 87(2)(b) inside the police car and slammed the door on his left foot. The officers who he did not see dragged § 87(2)(b) from car to an entrance behind the police precinct because there were too many people in front of the house on § 87(2)(b). Inside the precinct stationhouse PO2 (African-American male, 6'4"-6'5", very muscular build, short black hair, in uniform) took § 87(2)(b) with one hand and threw him against a wall. § 87(2)(b) was handcuffed at this point.

None of the officers spoke to § 87(2)(b) inside the precinct and § 87(2)(b) yelled out to speak to Detective James Nash (Caucasian male, short height, grayish hair) whom he has known for a long time. When Det. Nash heard § 87(2)(b) and came over to him when § 87(2)(b) was in the cell, § 87(2)(b) asked him for medical assistance for his ribs and his shoulder blade. Detective Nash advised § 87(2)(b) to wait and go over to Central Booking in order to avoid getting delayed in booking for three days or longer. He told § 87(2)(b) that he should go to a doctor after he was done with booking.

§ 87(2)(b) had a lot of bruises on his person and the officers tried to take his fingerprints very quickly, and send him to Central Booking within five minutes to make it look like he got his injuries in booking. PO1 came to Central Booking and brought § 87(2)(b) his pants. In Central Booking, § 87(2)(b) put his hand in the mouth of a man who was suffering from seizures and the man bit his hand. The personnel on hand advised him to go to a doctor but § 87(2)(b) chose to wait and get medical help for this and his other injuries later on.

It should be noted that in his interview with § 87(2)(b), § 87(2)(b) admitted that he ran from the police after seeing § 87(2)(b) because the officers' guns were pointed at him. § 87(2)(b) did not mention this detail in his CCRB interview and stated that he walked home.

§ 87(2)(b) visited § 87(2)(b) in Brooklyn after coming home from Central Booking later that day. When § 87(2)(b) said that he was involved in a conflict with the police, the people in the hospital hesitated in treating him. § 87(2)(b) believed that police officers and hospital administrators work together and try to protect each other. § 87(2)(b) had some x-rays done but indicated the hospital did not help him with anything else besides giving him some Tylenol. § 87(2)(b)'s injuries include sharp pain on his left hand (likely due to the handcuffs), pain in his ribs, scrapes on his feet and knees from being dragged on the ground, and a bruise mark on the side of his left shoulder blade.

§ 87(2)(b) went to court sometime in June. A court officer tried to find § 87(2)(b) but could not because she fled the state. The judge told him that if § 87(2)(b) is not called by § 87(2)(b), his case will be dismissed. § 87(2)(b)'s Legal Aid lawyer informed him that he has 90 days from § 87(2)(b) to sue the officers.

The CCRB received § 87(2)(b)'s arrest photo on August 2, 2007 (Encl. 11d). The photo does not show any marks or scrapes on § 87(2)(b)'s face or person.

The CCRB prepared an array of African-American subject officers from the 67th Precinct to show to § 87(2)(b) for identification in an attempt to determine who used force against him inside the precinct stationhouse. However, § 87(2)(b) missed two photo-viewing appointments on September 17th and September 20th.

§ 87(2)(b) CCRB Phone Statement (Encl. 15a-c)

Investigator Volynets spoke to § 87(2)(b) on August 16, 2007 at 12:48 PM. § 87(2)(b) provided the following information:

On May 17, 2007 sometime in the afternoon, § 87(2)(b) was having an argument with her boyfriend § 87(2)(b) outside of § 87(2)(b) in Brooklyn. She remembered that § 87(2)(b) was wearing red and black Nike sneakers and baggy, loose-fitted jeans. § 87(2)(b) attempted to push § 87(2)(b) inside the house. § 87(2)(b) was eight weeks pregnant at the time. § 87(2)(b) shoved § 87(2)(b) and pulled at her hair. A struggle ensued, and § 87(2)(b) bit her right hand, causing her to sustain a red mark. § 87(2)(b) told § 87(2)(b) that she was breaking up with him. § 87(2)(b) walked away to Snyder Avenue and walked to the 67th Precinct, with § 87(2)(b) following behind her. § 87(2)(b) saw PO1, a fat uniformed Caucasian male with balding blond hair sitting inside a marked car. PO1 asked § 87(2)(b) if she was alright. § 87(2)(b) told PO1 that she was pregnant and that her ex-boyfriend bit her hand and pulled her hair. § 87(2)(b) got inside the police car and pointed out § 87(2)(b) who at this point started running through the police parking lot in the direction of § 87(2)(b). PO2, PO1's partner, a thin uniformed Hispanic male officer with black hair, got out of the car and started chasing § 87(2)(b) and yelling for him to stop.

PO1 pulled the car around the block and drove up to § 87(2)(b). § 87(2)(b) saw about fifteen officers struggling with § 87(2)(b) in the front steps of § 87(2)(b). § 87(2)(b) saw PO3 and PO4, Caucasian males wearing white shirts with gold badges on them, about five officers in plain clothes, and the rest of the officers in uniform. § 87(2)(b) was on the floor near the steps of his house, with his face and stomach to the steps. His feet were partly in the doorway of the house and it appeared to § 87(2)(b) that he was about to flee inside as the officers were trying to restrain him. PO3 and PO4 were trying to get each of § 87(2)(b)'s hands in an attempt to handcuff him. Several other uniformed officers were grabbing § 87(2)(b)'s legs. An officer or detective in plain clothes was making contact with the back of § 87(2)(b)'s neck in order to prevent § 87(2)(b) from moving. It did not appear that this officer was choking or trying to choke § 87(2)(b). At least two officers were telling § 87(2)(b) to stop fighting several times. § 87(2)(b) refused to place his hands behind his back. § 87(2)(b) was sitting on the steps of the house next door as this was going on.

§ 87(2)(b) was outside the door, standing one step away from § 87(2)(b) and was arguing with the officers. An officer pulled her arm towards her stomach in order to make her back up for a second and stop standing too close to § 87(2)(b). § 87(2)(b) was screaming in Jamaican. She kept yelling, "what are you doing to my son? This is brutality. This is not how you treat somebody. Y'all are motherfuckers."

§ 87(2)(b) told § 87(2)(b) who was holding a camera, to "record this shit." The officers kept telling § 87(2)(b) "please back up. You have to back up." § 87(2)(b) did not hear anyone curse at § 87(2)(b) at any point.

A chubby Caucasian detective in a light blue cream-colored shirt and black pants with spiky black hair, and with a gun on his left side told § 87(2)(b) who was standing about four steps away, to please put his camera down and back up. None of the officers cursed at § 87(2)(b) though the detective was being firm and loud with § 87(2)(b). A crowd of at least a dozen children and 8-9 adults formed, with many people getting really close to and even under the officers to see what was going on. Some people in the crowd were screaming out, "get the fuck off him! What the fuck is this? This is police brutality. You have no right to do this."

§ 87(2)(b) was resisting by using his body weight to avoid standing up, even when all the officers instructed him to get up. The officers tried to pick § 87(2)(b) up several times but he kept moving his weight down and resisting, and may have scraped his feet with the ground. PO3 and PO4 finally grabbed his arms and two more uniformed officers grabbed § 87(2)(b)'s feet. All the officers picked § 87(2)(b) up from the stairs and carried him to the street, where a patrol car was waiting. § 87(2)(b)'s hands were behind his back as he was carried to the car, and § 87(2)(b) was pretty sure that he was already handcuffed. § 87(2)(b) started talking to § 87(2)(b)'s cousin and did not clearly see how the officers put § 87(2)(b) in the car. By the time he was at the car, one of his sneakers had fallen off. § 87(2)(b)'s jeans legs also fell off almost to his ankles, and his underwear was visible. § 87(2)(b) did not see any officers pull off § 87(2)(b)'s jeans or sneakers, and thought that the jeans probably came off by themselves. § 87(2)(b) was "making a show": crying and being very loud, saying, "this is fucked up." § 87(2)(b) saw § 87(2)(b)'s face as he was picked up. His face appeared red "from crying so much." § 87(2)(b) did not see any bruises on his face. She may have seen a scratch on one of his feet, sustained by a scrape with the ground after the sneaker came off.

§ 87(2)(b) went to the 67th precinct stationhouse and spoke with an overweight plain-clothed African-American female with black hair. She then spoke with a skinny Indian male detective with gray hair, who took her complaint down. § 87(2)(b) heard § 87(2)(b)'s voice in the precinct as he was brought in but she did not see him. According to § 87(2)(b), § 87(2)(b) was "screaming like a little girl." He was yelling, "she's gonna leave me; she's gonna leave me. Why! Why!"

§ 87(2)(b) did not witness the officers being excessive or physically abusive with § 87(2)(b) especially since § 87(2)(b) had resisted "a lot" from the start.

§ 87(2)(b) informed the CCRB that § 87(2)(b) is trying to "get a little money in the bank" and that he should not be trusted.

§ 87(2)(b) CCRB Statement (Encl. 14a-c)

Several days after her CCRB interview, § 87(2)(b) identified § 87(2)(b) a § 87(2)(b) African-American male, as one of the individuals who witnessed the incident with § 87(2)(b) and provided the investigator with § 87(2)(b)'s contact information. § 87(2)(b) was interviewed at § 87(2)(b) in Brooklyn on August 9, 2007 and provided the following information:

On May 17, 2007 at about 5:15 PM, § 87(2)(b) was playing basketball with six other individuals across the street from § 87(2)(b) when he observed § 87(2)(b) about two car lengths away, running to the steps of the house. Approximately 6 or 7 officers were pursuing § 87(2)(b). Almost all of these officers were in uniform. One or two of these officers appeared to be Hispanic while the rest were Caucasian. § 87(2)(b) reached the stoop of the house and began climbing the steps. § 87(2)(b) climbed the steps and attempted to open the front door of the house but the door was locked so he could not get inside. The officers caught up with § 87(2)(b) and began to punch, beat, and kick him. PO1 (Caucasian male, 5'11", muscular and athletic build, in uniform, black or brown hair) started kicking § 87(2)(b) on his left cheekbone. PO1 also told § 87(2)(b) to stop resisting. PO2 (Caucasian male, 5'10"-6'0", more athletic than PO1, brunette hair) kicked § 87(2)(b) several times on his ribs and legs. § 87(2)(b) was "guarding his face," lying on his side in a fetal position as these officers were attacking him.

§ 87(2)(b) was screaming. At this point, a crowd of at least 15 people started to gather at the site of the incident. § 87(2)(b) saw an officer drag § 87(2)(b) and elbow him in the head. At least five additional officers arrived on the scene from the 67th Precinct. § 87(2)(b) saw one marked car and a black Chevy Impala on the street. Some of these officers appeared to be plain-clothed detectives. Numerous officers dragged § 87(2)(b) by his legs from his house to a patrol car on the service road. § 87(2)(b) kept trying to pull back to go to the house.

§ 87(2)(b), § 87(2)(b)'s mother, came out of the house and saw the officers hitting her son. § 87(2)(b) was upset and kept using profane language with the officers, saying, "you don't have to fucking do that to my son." One of the officers pulled § 87(2)(b) away from the bottom of the stairs. § 87(2)(b) heard § 87(2)(b) say, "look at my shirt!" because her shirt was ripped from the encounter. § 87(2)(b) did not hear any officers curse at § 87(2)(b).

Several officers handcuffed § 87(2)(b) from behind after PO1 hit § 87(2)(b) on the back with his right knee. § 87(2)(b) thought he saw § 87(2)(b) fall forward, though § 87(2)(b) stated that a car was partially blocking his frame of vision. As he was dragged, § 87(2)(b)'s jeans, which were already loose on his body, fell down and he was "basically out of his pants" with his underwear showing. The right leg of the jeans was completely out.

§ 87(2)(b) was thrown inside the patrol car with his stomach to the car seat. An officer slammed the car door, hitting § 87(2)(b)'s left toe. § 87(2)(b) thought that the officer forcefully slammed the car door in a deliberate manner. Inside the car, § 87(2)(b) kept screaming, "look at my fucking face, it's fucked up!" § 87(2)(b) thought he saw bumps on the left side of § 87(2)(b)'s face and swelling on his lower lip.

PO3 (Hispanic or Caucasian male in blue buttoned-down dress shirt with a badge or pin on it, and black pants) did not have any contact with § 87(2)(b). PO3 approached § 87(2)(b) who was standing and taping the incident with a video camera. § 87(2)(b) was already being dragged down the street at this point. PO3 pushed § 87(2)(b) pushed the camera away and told § 87(2)(b) "get the camera out of my face." The man said, "why are you pushing me officer?"

§ 87(2)(b) did not know why the officers were arresting § 87(2)(b).

§ 87(2)(b) CCRB Statement (Encl. 13a-c)

Several days after her CCRB interview, § 87(2)(b) identified § 87(2)(b) as § 87(2)(b) African-American male, § 87(2)(b), § 87(2)(b) as one of the individuals who witnessed the incident with § 87(2)(b) and provided the investigator with § 87(2)(b)'s contact information. § 87(2)(b) was interviewed at § 87(2)(b) in Brooklyn and provided the following information:

On May 17, 2007 at about 5:15 PM, § 87(2)(b) was playing basketball with § 87(2)(b), § 87(2)(b) and several other individuals in a park across the street from § 87(2)(b). § 87(2)(b) heard a noise and rushed to the sidewalk of the house. § 87(2)(b) saw two marked police vehicles and six unmarked Impalas on the street. When he looked carefully, he saw § 87(2)(b) lying face-down on the ground on the steps of the house. His stomach was making contact with the steps. § 87(2)(b) had seen § 87(2)(b) when § 87(2)(b) walked up to the basketball court to say hello. § 87(2)(b) then left and § 87(2)(b) did not know where). § 87(2)(b) saw at least a dozen officers on the scene overall, including PO1 (Caucasian male, bald, 6'0", muscular build, in plain clothes) and PO2 (Asian male, 5'0", average build, black hair, in plain clothes). One officer was in uniform while the rest were in plain clothes. A group of officers were hitting § 87(2)(b) as if "he had done something wrong." § 87(2)(b) said, "I'm in pain, I'm in pain; please stop!" At least five officers started to drag § 87(2)(b) down the stairs from the house. § 87(2)(b) saw one of the officers hit § 87(2)(b) with something that looked like a baton and yell out, "stop resisting!" Another officers screamed out, "stop fucking moving!" Several officers continued to hit § 87(2)(b) as his body was being dragged to the street. § 87(2)(b)'s jeans fell down, exposing his underwear, but § 87(2)(b) was not sure if the officers dragged his jeans down or if the jeans fell off on their own. According to § 87(2)(b), § 87(2)(b) was already restrained when he was dragged, so it was impossible for him to resist the

officers in any way. § 87(2)(b) did not remember exactly when § 87(2)(b) was handcuffed and therefore could not say if § 87(2)(b) resisted the officers when they tried to handcuff him.

Several officers were telling § 87(2)(b) and at least 12 other observers that they could not come any closer to § 87(2)(b). § 87(2)(b) indicated that the other witnesses were afraid of cooperating with the CCRB.]

Two or three officers “tossed” § 87(2)(b) inside a marked patrol car, his stomach on the seat of the car. One of his feet got caught in the car door and one officer slammed the door on his foot at least two to three times in succession. § 87(2)(b) was moving his feet inside the car and was screaming, making a non-verbal sound. § 87(2)(b) heard § 87(2)(b) mouth, “my toe, my toe!” in the car. The officer would not listen to § 87(2)(b). § 87(2)(b) did not see any marks or scratches on § 87(2)(b)’s face.

§ 87(2)(b) was seen arguing with several of the officers. She was asking the officers why they had to treat their son in such a violent manner. § 87(2)(b) was not using any profanity with the officers. Several officers were trying to push § 87(2)(b) back and to keep her from moving. § 87(2)(b) did not remember if any officers cursed at ### #####.

§ 87(2)(b), § 87(2)(b)’s next-door neighbor, came out with a video camera and started filming the incident as § 87(2)(b) was dragged to the police car. § 87(2)(b) heard one of the officers telling § 87(2)(b) to turn his camera off. § 87(2)(b) was pushed and became angry with the officers, saying “y’all are gonna get yours. You wait and see.”

According to § 87(2)(b) the officers, including PO1 and PO2, had smirks on their faces after placing § 87(2)(b) in the police car, as if they were proud of their work.

A third officer, a Caucasian female, 5’0”, thin build, blond hair combed back in a ponytail, plain clothes, did not have any contact with § 87(2)(b) and stood on the other side of the block.

Attempts to Contact § 87(2)(b)

During their interviews, § 87(2)(b) and § 87(2)(b) informed the investigator that § 87(2)(b) also known as ‘§ 87(2)(b) is a neighbor who resides at § 87(2)(b) but did not have a telephone number for him. The CCRB performed a Lexis-Nexis search to obtain § 87(2)(b)’s contact information on July 27, 2007. The CCRB further attempted to contact § 87(2)(b) by telephone on that date and sent a “please call” letter to an address retrieved by the Lexis results. § 87(2)(b) provided the investigator with § 87(2)(b)’s number on August 10, 2007. The investigator called § 87(2)(b) on this date. § 87(2)(b) indicated that he was unavailable at the moment but that he could be reached later in the week. The CCRB spoke to § 87(2)(b) on August 14, 2007. At this time, § 87(2)(b) scheduled an appointment for August 15th. On August 15th, § 87(2)(b) missed his appointment and the CCRB left a voicemail on his cell phone asking him to reschedule. The CCRB left another voicemail for § 87(2)(b) the following day and sent him a “missed appointment” letter on August 20th. To date, § 87(2)(b) has not responded to the CCRB’s correspondence and has not attempted to reschedule an appointment.

Videotape of Incident (Enclosed in a Separate Folder)

§ 87(2)(b) brought in a copy of § 87(2)(b)’s videotape during her CCRB interview appointment. The tape is clear and audible. No RMP numbers could be seen. The video shows § 87(2)(b) being carried to the RMP and placed into the back seat. § 87(2)(b) appears to be kicking at the RMP door at some point because an unknown officer is telling him to stop kicking the door before the door is finally closed. The video also shows what appears to be a detective in plain clothes telling the cameraman to back up and give the police room to do their job. The detective is backing the cameraman up, but at the same time asking him politely not to be “on the cop’s backs while they are doing their job.” The cameraman is heard saying to the detective that this is all on tape. § 87(2)(b) is also heard on the video yelling at the officers about telling the media. The people on the scene appeared to be hostile to the officers. Throughout the video and particularly towards the end, people are heard cursing at the officers.

PO Erik Worobey Memo Book Entry (Encl. 21a-d)

PO Worobey had several memo book entries for the incident with § 87(2)(b). On May 17, 2007 at about 4:50 PM, PO Worobey picked up § 87(2)(b) who was assaulted by § 87(2)(b) in front of the 67th Precinct stationhouse. § 87(2)(b) had bitten § 87(2)(b) in the hand and punched her in the head. PO Worobey observed this action and began to pursue § 87(2)(b) on foot. § 87(2)(b) ran towards his residence at § 87(2)(b) and reached the front door, at which time PO Worobey attempted to place § 87(2)(b) under arrest. § 87(2)(b) kicked and punched at PO Worobey. PO Worobey was able to handcuff § 87(2)(b)'s left hand and § 87(2)(b) was attempting to get further access into his residence. PO Worobey was able to pull § 87(2)(b) down to the sidewalk and cuff the second arm after much resistance. After § 87(2)(b) was cuffed, PO Worobey tried to make § 87(2)(b) stand up but § 87(2)(b) continually went limp and threw himself to the ground.

PO Erik Worobey CCRB Statement (Encl. 22a-c)

PO Erik Worobey (§ 87(2)(b)-old Caucasian male, § 87(2)(b), with blond hair and blue eyes) was interviewed at the CCRB on August 20, 2007. On May 17, 2007, PO Worobey was working the hours of 1430-2335. PO Worobey was working as a Domestic Violence Prevention officer inside the 67th Precinct stationhouse. PO Worobey was working by himself and was dressed in uniform.

On May 17, 2007 at about 4:50 PM, PO Worobey was on the second floor of the 67th Precinct stationhouse. He received a phone call from an administrative aide about a situation in front of the precinct. When PO Worobey came outside, he saw § 87(2)(b) grasping § 87(2)(b) on the curb. § 87(2)(b) did not have any shoes on and was not wearing a shirt. § 87(2)(b) did not have a belt on his pants. § 87(2)(b) was standing on § 87(2)(b)'s right side. PO Worobey later determined that § 87(2)(b) was trying to enter the precinct and make a complaint, alleging that § 87(2)(b) bit her several minutes earlier. When PO Worobey asked, "what's going on here?" § 87(2)(b) released his hands and struck § 87(2)(b) on the right side of her head. § 87(2)(b) began to flee westbound on § 87(2)(b). He had to hold his pants with his hands to keep them from falling down. PO Worobey pursued § 87(2)(b) all the way to the front entrance of a residential house at § 87(2)(b). § 87(2)(b) ran up the steps and reached the front door. PO Worobey did not remember if the door was locked or unlocked. At this point, PO Worobey succeeded in placing § 87(2)(b)'s left hand in handcuffs. § 87(2)(b) refused to give PO Worobey his right hand. PO Worobey managed to get § 87(2)(b) down on the ground with relatively little difficulty, partly because § 87(2)(b)'s pants fell down to his lower thighs and tripped him up. § 87(2)(b) was lying down with his side and was situated on the top step of the house entrance. § 87(2)(b)'s left cuffed arm was raised towards PO Worobey, who was standing directly over § 87(2)(b). § 87(2)(b) tried to pull his left arm back with his free right arm. PO Worobey struck the inside of § 87(2)(b)'s right elbow two or three times in order to get § 87(2)(b)'s right hand go toward his body and thereby gain more control. PO Worobey was able to remove § 87(2)(b) to the sidewalk. § 87(2)(b) was yelling and screaming. PO Worobey did not recall exactly what § 87(2)(b) was screaming out.

There was a Brooklyn Borough meeting nearby and approximately five borough officers observed PO Worobey struggling with § 87(2)(b). One of these officers assisted PO Worobey in handcuffing § 87(2)(b)'s right hand approximately one minute later by holding § 87(2)(b)'s right hand close to his left hand. This officer, an African-American male, wore a white shirt, indicating that he may have been a lieutenant. The other four officers did not make any contact with § 87(2)(b) and made sure to keep additional civilians from interfering. Some of these officers were in uniform and some were in plain clothes.

PO Worobey then attempted to escort § 87(2)(b) to the patrol car but § 87(2)(b) "went limp." PO Worobey thought that this may have been deliberate. § 87(2)(b)'s body was heavy and PO Worobey had to rest his body on his shoulder. PO Worobey and § 87(2)(b) were both standing upright and were making contact with the ground. No additional officers assisted PO Worobey in bringing § 87(2)(b) to the patrol car.

PO Worobey tried to put § 87(2)(b) inside the patrol car at least five times. With each attempt, § 87(2)(b) kept pushing the door out with his left foot. § 87(2)(b) said that his left foot was injured from an earlier car accident but did not complain of any pain to the foot. PO Worobey kept trying to put the foot inside the car

but before he managed to close the door, § 87(2)(b) would manage to pop it out again in the window area of the door.

A group of other people witnessed the struggle with § 87(2)(b) on the sidewalk and in the nearby area on § 87(2)(b). PO Worobey could not give an estimate of the number of observers. Several people were also present in the foyer of the house. None of these people interacted with PO Worobey. PO Worobey did not see any of these people interact with any other officers on the scene. PO Worobey did not have any contact with § 87(2)(b) during the incident. PO Worobey observed several individuals using filming devices, including cell phone cameras and one full-sized video camera, on the sidewalk. He did not make any contact with these individuals.

PO Olivo processed § 87(2)(b)'s arrest paperwork inside the precinct and did not make any contact with § 87(2)(b) on the scene. PO Olivo took down § 87(2)(b)'s statement.

Inside the precinct, § 87(2)(b) told PO Worobey that he was upset with § 87(2)(b) because she was going to have an abortion. § 87(2)(b) also told PO Worobey that he had been in a car accident several months earlier and had incurred a foot injury from it. A police cell attendant asked § 87(2)(b) if he needed any medical assistance. § 87(2)(b) refused and signed the form.

PO Worobey observed a scar on § 87(2)(b)'s right cheek from an earlier incident.

PO Worobey did not use any discourteous or profane language with § 87(2)(b) and did not hear any other officers use any discourteous language with either § 87(2)(b) or any other civilians on the scene.

PO Worobey was not aware of the status of § 87(2)(b)'s arrest and did not have to appear in court.

PO Pablo Dejesus CCRB Interview (Encl. 20a-b)

PO Pablo Dejesus § 87(2)(b)-old Hispanic male, § 87(2)(b), § 87(2)(b), with black hair and brown eyes) was interviewed at the CCRB on August 23, 2007. On May 17, 2007, PO Dejesus was working the hours of 1600-0100. PO Dejesus was dressed in plain clothes and was coming to work. PO Dejesus did not have any memo book entries for this incident.

On May 17, 2007, at about 3:30 PM, PO Dejesus parked his car and was walking from § 87(2)(b) to § 87(2)(b) towards the 67th Precinct Detective Squad when he saw § 87(2)(b) a young African-American male, running across from him. PO Dejesus then observed PO Erik Worobey chasing § 87(2)(b) and yelling "foot pursuit" in his radio. PO Dejesus went behind PO Worobey to assist him. By the time PO Dejesus reached § 87(2)(b) he saw PO Worobey and four or five other officers in uniform struggling with § 87(2)(b). PO Dejesus did not know the identity of the additional officers and did not know what command they were from. PO Dejesus thought they might be "brand new guys." § 87(2)(b) was lying on his back on the stairs of the house, punching and kicking at the officers. It appeared that § 87(2)(b) was trying to get inside the house. Two or three officers instructed § 87(2)(b) to place his hands behind his back. § 87(2)(b) yelled, "fuck you! Get the fuck off me!" The officers, including PO Worobey, were grabbing § 87(2)(b)'s hands in an attempt to turn § 87(2)(b) around and place him in handcuffs.

Several minutes later, the officers finally handcuffed § 87(2)(b) walked him down the stairs, and were escorting him to an RMP in the middle of the street. As the officers were taking § 87(2)(b) to the patrol car, § 87(2)(b) let his body "go limp." The officers were trying to hold § 87(2)(b) up and kept telling him, "you have to get up; you have to get up." § 87(2)(b) refused and said "fuck this" several times. An elderly woman came out of the house and started cursing and yelling at the officers to get off her property. PO Dejesus did not know who this woman was or what her relationship to § 87(2)(b) was. Three young males also came out of the house and witnessed the officers struggling with § 87(2)(b).

After several minutes, the officers managed to get § 87(2)(b) near the patrol car but had difficulty getting him inside because he kept pushing the door away with his foot. The car door was open at this moment. PO Dejesus stood behind the officers and did not assist them in getting § 87(2)(b) secured inside the patrol

car. PO Dejesus did not remember if § 87(2)(b)'s pants were loose or if § 87(2)(b) was barefoot at the time.

At this point, § 87(2)(b) came up behind PO Dejesus within an inch of his person and began to record the incident with a video camera. PO Dejesus turned around and said, "sir you have to move back. You cannot interfere. Go film and do what you want to do, but you have to stand back." PO Dejesus asked § 87(2)(b) to stand back a total of three or four times. According to PO Dejesus, § 87(2)(b) was standing close to the police car and needed to step back on the sidewalk for his own safety. § 87(2)(b) filmed PO Dejesus and PO Dejesus's shield but walked back shortly thereafter. Several minutes later, several police supervisors told everyone on the scene to leave. PO Dejesus told § 87(2)(b) that he could go to the precinct if he wanted to get any more information about the incident. PO Dejesus did not push § 87(2)(b) and did not recall shoving him in any way. PO Dejesus did not recall touching § 87(2)(b)'s camera though he admitted that he may have gently guided the camera away in an attempt to get § 87(2)(b) to back off. Three of four other individuals stood on the sidewalk of the house.

PO Dejesus did not see any marks or scrapes on § 87(2)(b)'s body or face. § 87(2)(b) did not complain of any pain at any point during the incident.

PO Yoelis Olivo OLBS (Encl. 17a-c)

PO Olivo's arrest report for § 87(2)(b) indicates that § 87(2)(b) bit the hand of § 87(2)(b) and punched her in the face, causing injury. § 87(2)(b) also punched and kicked at the officers who tried to apprehend him. § 87(2)(b) The report indicates that force was used to effect § 87(2)(b)'s arrest.

PO Yoelis Olivo UF 61 (Encl. 16a-b)

PO Olivo's complaint report for § 87(2)(b)'s complaint report indicates that § 87(2)(b) bit the hand of § 87(2)(b) and punched her in the face, causing injury. § 87(2)(b) also punched and kicked at the officers who tried to apprehend him.

PO Yoelis Olivo Memo Book Entry (Encl. 18a-b)

PO Olivo had several memo book entries for the incident with § 87(2)(b). At about 5 PM on May 17, 2007, § 87(2)(b) was brought to the 67th Precinct stationhouse. This happened after § 87(2)(b), § 87(2)(b)'s girlfriend, approached PO Worobey and said that § 87(2)(b) bit her finger and punched her in the head. PO Worobey and PO Olivo walked outside with § 87(2)(b). § 87(2)(b) pointed § 87(2)(b) out. As soon as § 87(2)(b) saw the officers, he fled. § 87(2)(b) was apprehended at § 87(2)(b) where he ran into his house and was resisting arrest. § 87(2)(b) was brought back into the stationhouse under arrest several minutes later.

PO Yoelis Olivo CCRB Statement (Encl. 19a-b)

PO Yoelis Olivo (§ 87(2)(b)-old Hispanic female, § 87(2)(b), § 87(2)(b), with brown hair and brown eyes) was interviewed at the CCRB on August 15, 2007. On May 17, 2007, PO Olivo was working 1300 by 2135 hours. PO Olivo was working as the domestic violence officer. She was working with PO Erick Worobey. PO Worobey was dressed in uniform while PO Olivo was dressed in plain clothes.

On May 17, 2007 at about 5 PM, § 87(2)(b) entered the 67th Precinct stationhouse and approached PO Worobey, informing him that her boyfriend § 87(2)(b) had bit her finger and punched her on the side of her head. PO Olivo took down § 87(2)(b)'s statement. A short while later, § 87(2)(b) walked out of the precinct with PO Olivo and PO Worobey and pointed § 87(2)(b) out on the street. § 87(2)(b) noticed that the officers were walking toward him and started running down the sidewalk on § 87(2)(b). Neither of the officers had a chance to speak to § 87(2)(b) before he took off. PO Worobey pursued § 87(2)(b) while PO Olivo, who was wearing a suit and high heels, went back to the precinct with § 87(2)(b) and got more information from her. PO Olivo did not see which officers apprehended and restrained § 87(2)(b) besides PO Worobey. Approximately five to ten minutes later, PO Worobey brought § 87(2)(b) back to the stationhouse in handcuffs. § 87(2)(b)'s shoes were untied and his jeans appeared to be loose and too large for § 87(2)(b)'s thin frame. His jeans were intact on his body. PO

Olivo handled § 87(2)(b)'s arrest paperwork and asked § 87(2)(b) to provide his contact and pedigree information. § 87(2)(b) kept asking "why am I here, why am I here?" None of the officers in the precinct made any physical contact with § 87(2)(b). PO Olivo did not see any marks or scratches on § 87(2)(b)'s face or anywhere else on his person. According to PO Olivo, PO Worobey did not receive any injuries from his encounter with § 87(2)(b). PO Olivo stated that Dt. Dejesus was working no that day but she did not see the detective make any verbal or physical contact with § 87(2)(b) inside the precinct. PO Olivo had an office on the second floor of the precinct, so she did not see which officers, if any, had interacted with § 87(2)(b) on the first floor.

PO Olivo called § 87(2)(b) twice to ask her to bring another pair of shoes for § 87(2)(b) because his shoes may have fallen off. § 87(2)(b) came in once and did not come back.

PO Olivo did not know who § 87(2)(b) was and did not have any contact with him.

§ 87(2)(b) Medical Records (Enclosed in a Separate Folder)

§ 87(2)(a) PBH §18(6)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

The CCRB received copies of polaroid shots taken of § 87(2)(b)'s injuries from the Internal Affairs Bureau. The polaroids seem to show several scrapes and bruises on various parts of § 87(2)(b)'s body but are inconclusive and very difficult to decipher (Encl. 11e). According to the IAB investigatory report, the photos capture a mark from the cuffs on § 87(2)(b)'s wrist, a cut on the left toenail, a bruise on the left shoulder, slight redness and scratches to the back and arm, and minor redness to the head.

Police Documents

The CCRB received the SPRINT for this incident on June 11, 2007 (Encl. 23a). According to the SPRINT, a patrol officer from the 68th Precinct made an arrest at 4:48 PM. The 67th Precinct Detective Squad roll call, received on September 6, 2007, shows that PO Dejesus was assigned to work as a robbery investigator from 4 PM to 1 AM on May 17, 2007 (Encl. 25a-e). The 67th Precinct command log lists PO Olivo as the arresting officer for § 87(2)(b). No information is provided about § 87(2)(b)'s mental or physical condition in the command log entry (Encl. 26a). The Tour 3 roll call for the 67th Precinct shows that PO Olivo and PO Worobey were working as Domestic Violence officers on May 17th (Encl. 27a-k). The Prisoner Holding Pen Roster shows that § 87(2)(b) was brought in at 7:15 PM and was brought out at § 87(2)(b) (Encl. 28a).

Complainant CCRB History (Encl. 4a and 5a)

This is the first CCRB complaint for § 87(2)(b) § 87(2)(b)

§ 87(2)(b)

Subject Officer CCRB History (Encl. 2a and 3a-c)

PO Worobey has never been disciplined as a result of a CCRB complaint. PO Dejesus received command discipline A for the substantiated allegations of a stop-and-question, frisk and search, and refusal to provide name and shield number in 2004.

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Status of IAB Investigation (Encl. 12a-d)

Sgt. Marlon Ming of Group 32 performed a callout in connection with this incident on May 17, 2007. Sgt. Ming interviewed § 87(2)(b) and § 87(2)(b) and viewed § 87(2)(b)'s videorecording. After reviewing the facts involved, the IAB investigation was concluded and the complaint was referred to the CCRB.

Conclusions and Recommendations

Officer Identification

PO Olivo identified PO Worobey as the officer who apprehended § 87(2)(b) as § 87(2)(b) ran away from the 67th Precinct stationhouse. PO Worobey recollected the incident with § 87(2)(b) § 87(2)(g). In his CCRB statement, PO Dejesus admitted to interacting with § 87(2)(b) the man with the videocamera. § 87(2)(g). PO Olivo stated that she only processed § 87(2)(b)'s paperwork and interviewed § 87(2)(b) § 87(2)(g). In his CCRB statement, PO Worobey explained that five borough officers assisted him in restraining § 87(2)(b). PO Worobey did not know any of these officers § 87(2)(g). Also, § 87(2)(b) has not responded to the CCRB's attempts to show photos of potential subject officers.

Disputed and Undisputed Facts

It is not disputed that § 87(2)(b) and § 87(2)(b) were engaged in an argument. § 87(2)(g). It is not disputed that § 87(2)(b) reached the front porch of his house at § 87(2)(b) and that numerous officers tried to apprehend him. § 87(2)(g). It is not in dispute that PO Worobey used physical force against § 87(2)(b) in an attempt to restrain him. It is also not in dispute that PO Worobey slammed the door of the patrol car on § 87(2)(b) in order to secure § 87(2)(b) inside the vehicle. § 87(2)(g). It is not in dispute that PO Dejesus made physical contact with § 87(2)(b) during the incident as § 87(2)(b) was holding his videocamera.

Assessment of Evidence

During his CCRB interview, § 87(2)(b) stated that he intended to go to the 67th Precinct and speak to Detective Nash about his conflict with § 87(2)(b) but that he decided to turn around and walk home when he saw § 87(2)(b) speaking to an officer. According to his testimony, ten to fifteen officers showed up at the steps of § 87(2)(b)'s home and began hitting and punching him without any provocation on his part. § 87(2)(b) also stated that one of the officers placed the sole of his boots on § 87(2)(b)'s face with enough force to leave a footprint. However, there are no facial marks or bruises on § 87(2)(b)'s face according to his arrest photograph. § 87(2)(b) did not witness the beginning of the physical struggle with § 87(2)(b) and the officers but stated that she saw the officers kicking and punching various parts of § 87(2)(b)'s body as § 87(2)(b) was lying on the ground. § 87(2)(b) admitted that she got very upset and started cursing when she realized that the officers were attacking her son. § 87(2)(b) and § 87(2)(b) both of whom witnessed the incident a short distance away, testified that § 87(2)(b) was screaming at the officers and that he had to be dragged to the patrol car. While § 87(2)(b) and § 87(2)(b) described a substantial amount of force used against § 87(2)(b), § 87(2)(b), who witnessed the entire incident, explained that § 87(2)(b) was trying to get inside the house as the officers stopped him. According to § 87(2)(b), § 87(2)(b) refused to be handcuffed and that several officers told him to "stop fighting." The only force § 87(2)(b) witnessed was when the officers were grabbing § 87(2)(b)'s hands and legs in an attempt to subdue him. § 87(2)(b) said that an officer grabbed § 87(2)(b)'s arm to keep her from interfering in § 87(2)(b)'s arrest.

Like § 87(2)(b) PO Worobey testified that § 87(2)(b) attempted to run inside his house when the officer stopped him. According to PO Worobey, § 87(2)(b) was very uncooperative and refused to let the officers handcuff him. PO Worobey said that he hit the inside of § 87(2)(b)'s right elbow two to three times to get more control of § 87(2)(b)'s arm. Other officers had to assist PO Worobey to finally place § 87(2)(b) in handcuffs. What is more, PO Dejesus also testified that § 87(2)(b) was extremely uncooperative

and that he deliberately “went limp” and that several officers, including PO Worobey, were struggling with § 87(2)(b) and kept telling him “you have to get up” several times. § 87(2)(b) s videotape captured several officers telling § 87(2)(b) to stop kicking the door of the police car as they tried to place him inside, § 87(2)(g)

§ 87(2)(g)

While the tape only captures several minutes of the incident at the point when § 87(2)(b) is being led to the patrol car, his physical unruliness is clearly visible. § 87(2)(b) and several other civilians are heard screaming and cursing at the officers, but none of the officers on the scene are heard making any rude or inappropriate comments in return. What is more, the tape does not depict any officers use any excessive or misdirected force against § 87(2)(b) or any other civilians. § 87(2)(g)

Allegation A: PO Erik Worobey used physical force against § 87(2)(b)

Allegation B: Officers used physical force against § 87(2)(b)

Allegation E: PO Erik Worobey struck § 87(2)(b) with a car door.

In his CCRB statement, PO Worobey admitted that he grabbed § 87(2)(b) s arms and struck the inside of § 87(2)(b) s right elbow several times to get § 87(2)(b) handcuffed. PO Worobey stated that he was the officer who was mainly dealing with § 87(2)(b). PO Worobey also took the responsibility for transporting § 87(2)(b) to the patrol car. PO Worobey denied using any other form of physical force against § 87(2)(b). According to the Police Student’s Guide Scale of Escalating Force, § 87(2)(b) s behavior constituted the category of minor physical resistance (Encl. 1a). The appropriate measure designated to counteract this resistance includes compliance techniques such as “wrestling holds and grips designed to physically overpower subjects and/or to inflict physical pain that ends when the technique is stopped and that causes no lasting injury.” § 87(2)(g)

Later, when § 87(2)(b) refused to walk and went limp, PO Worobey had to hold him up and essentially drag him all the way to the patrol car. While § 87(2)(b) alleged that PO Worobey deliberately slammed the door against his foot, both PO Worobey and PO Dejesus insisted that § 87(2)(b) kept pushing the door away with his foot and refused to get inside. PO Worobey testified that he positioned § 87(2)(b) s feet inside the car before slamming the door shut. § 87(2)(g)

Allegation C: An officer used physical force against § 87(2)(b).

§ 87(2)(b) stated that a male officer pushed her inside the entrance of her house when she came out and told her to “get the fuck back inside.” § 87(2)(b) admitted that once she realized that the officers were struggling with her son, she got animated and shouted profanities. § 87(2)(b) said that § 87(2)(b) came so close to § 87(2)(b) that her presence was interfering with the officers’ attempt to apprehend him. § 87(2)(b) saw an officer push § 87(2)(b) s arm away to get her to take several steps back and clear the area. § 87(2)(g)

Allegation D: An officer spoke rudely to § 87(2)(b)

§ 87(2)(b) s videotape did not capture any officers using rude or discourteous language with either § 87(2)(b) or any other civilians. What is more, § 87(2)(b), § 87(2)(b), and § 87(2)(b) all stated that they did not hear any officers use curse at § 87(2)(b). Additionally, § 87(2)(b) made no mention of any discourteous comments when she was interviewed by IAB. § 87(2)(g)

Allegation F: PO Pablo Dejesus used physical force against § 87(2)(b)

Between August 10th and August 20th, the CCRB contacted § 87(2)(b) five times by telephone and sent him two “please call” letters. § 87(2)(b) failed to appear at the CCRB to provide an in-person statement.

§ 87(2)(g)

Allegation G: An officer used physical force against § 87(2)(b) inside the 67th Precinct stationhouse.

The CCRB prepared an array of potential subject officers to show to § 87(2)(b) for identification. However, § 87(2)(b) missed two photo-viewing appointments on September 17th and September 20th.

§ 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: